

File No: EXP202403145

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On March 7, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against 20 MINUTOS EDITORA, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection, and based on the following
FACTS

FIRST: Following a provisional assessment of the facts analyzed within the framework of the preliminary investigation of file EXP202400189, this Agency estimated that there were reasonable indications that the public exposure of the image of the victim of an alleged crime through a publication by 20 MINUTOS EDITORA, S.L. could constitute a violation of personal data protection regulations. Considering the particularly sensitive nature of the personal data disclosed and the intense impact on the privacy of the individual referred to, this Agency deemed that the continuation of its processing could pose an irreversible risk, impossible to repair. For this reason, on January 4, 2024, the Director of the Spanish Agency for Data Protection issued, in the aforementioned file, a resolution imposing the following provisional measures on 20 MINUTOS EDITORA, S.L.:

- “1.- Require 20 MINUTOS EDITORA, S.L. to remove the aforementioned content from the web addresses from which it is accessible, within a maximum period of 5 calendar days, avoiding, to the extent that technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
- 2.- Require 20 MINUTOS EDITORA, S.L. to ensure that the removal or modification of the content is carried out in such a way that it prevents third parties from accessing and disposing of the original, but guarantees its preservation for the purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be initiated.
- 3.- Require 20 MINUTOS EDITORA, S.L. to inform this Spanish Agency for Data Protection about the execution of the measure within a maximum period of 5 calendar days.”

SECOND: The aforementioned resolution was duly notified to 20 MINUTOS EDITORA, S.L. by electronic means on January 5, 2024, in accordance with Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), granting a period of five calendar days for the adoption of the imposed provisional measures, as evidenced in the file.

THIRD: On January 9, 2024, and with entry registration number REGAGE24e00001813821, 20 MINUTOS EDITORA, S.L. sent a response to this Agency acknowledging receipt of the requirement and stating that no personal data of the alleged victim was included in said news, and therefore did not violate the legislation on personal data protection.

FOURTH: 20 MINUTOS EDITORA, S.L. has not sent any response to this Agency that proves compliance with the imposed measures, maintaining the publication of the aforementioned content.

FIFTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for it.

Furthermore, 20 MINUTOS EDITORA, S.L. has not expressed its intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SIXTH: According to the report obtained from the AXESOR tool, the entity 20 MINUTOS EDITORA,

S.L. is an SME established in 2005, with a turnover of XXXXXXXXXX euros in 2022.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), grants the Director of the Spanish Agency for the Protection of Data the authority to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Unfulfilled Obligation

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that 20 MINUTOS EDITORA, S.L. has failed to comply with the resolution of the Spanish Agency for the Protection of Data regarding the measures imposed on it.

Therefore, the facts described in the "Facts" section are deemed to constitute an infringement, attributable to 20 MINUTOS EDITORA, S.L., for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher."

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

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IV

Proposal for Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In the initial assessment, it is noted that no mitigating or aggravating factors apply.

In light of the facts presented, without prejudice to what results from the instruction of the procedure, it is considered appropriate to impose a sanction on 20 MINUTOS EDITORA, S.L. for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction that would be appropriate to impose is an administrative fine in the amount of 45,000.00 euros.

V

Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

In such a case, in the resolution that is adopted, this Agency may order the responsible party to notify the Agency within a maximum period of five calendar days of the adoption of the measures imposed in the resolution of file number EXP202400189.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above,

By the Director of the Spanish Agency for the Protection of Data, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against 20 MINUTOS EDITORA, S.L., with NIF B99083966, for the infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the aforementioned GDPR.

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SECOND: TO APPOINT A.A.A. as instructor and B.B.B. as secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the resolution imposing the measures, as well as the certification of having carried out its notification, and the response from 20 MINUTOS EDITORA, S.L. dated January 9, 2024.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be, for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of said regulation, an administrative fine of 45,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to 20 MINUTOS EDITORA, S.L., with NIF B99083966, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their allegations, they must provide their NIF and the file number that appears in the

heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 36,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 36,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 27,000.00 euros.

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (36,000.00 euros or 27,000.00 euros), you must make the payment by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Sub-Directorate of Inspection to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On March 19, 2024, the respondent has proceeded to pay the sanction in the amount of 27,000 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of

the procedure, entails the renunciation of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the aforementioned Initiation Agreement transcribed above, it was indicated that if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

Having received a written communication from 20 MINUTOS EDITORA, S.L. informing that it has adopted the necessary measures to prevent the reoccurrence of the events leading to the infringement committed, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that “The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it.” This principle refers to the obligation that falls on the controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively attentive throughout the entire lifecycle of the processing to ensure that this compliance is correct, being additionally able to demonstrate it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides the following:

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“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infraction.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are

cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202403145, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to 20 MINUTOS EDITORA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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